



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 12, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202100424 regarding Sergeant Declan Ludington, Tax No. 953018
(DADS No. 2022-25908)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the substantiated allegations in this matter are not supported by the facts as presented in the CCRB Investigative Recommendation, and therefore do not constitute misconduct. Therefore, the Police Commissioner directs that no disciplinary action be taken against Sergeant Ludington in connection with this matter.

The allegations that Sergeant Ludington abused his authority by entering and searching a residence were not supported by the facts. In this matter, Sergeant Ludington approved the entry and search of an apartment where a detective under his supervision had already conducted a sufficient investigation to reasonably conclude that the individual being sought on a parole warrant resided at the apartment being entered. Further, the circumstances described by the detectives present at the scene before Sergeant Ludington's arrival sufficiently supported the reasonable conclusion that the individual being sought was present at that time. Having met both prongs of the applicable two-prong test, the entry and limited search were appropriate and legally sound. Further, the actions were proper based

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on the training provided by the Department in connection with the execution of arrest warrants.

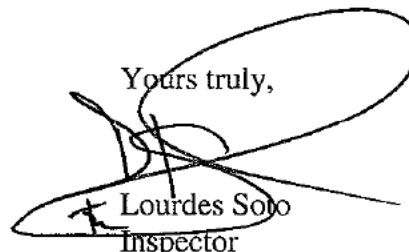
Because Sergeant Ludington and his detectives had relied on and appropriately followed their training with regard to establishing both prongs of the applicable two-prong test in order to make the entry and search in this matter, his actions in entering and searching the location do not constitute misconduct.

The allegation that Sergeant Ludington failed to offer his business card to an individual is not supported by the individual's own statements. The individual who was alleged to have not been offered a business card clearly stated to CCRB that she arrived at the apartment a day or two after the officers had left the location. This statement was made only weeks after the incident. Therefore, based on the individual's own statements, Sergeant Ludington did not interact with her at the location, on the date of the entry addressed in this matter, and could not have offered her his business card.

Therefore, the Police Commissioner had directed that Sergeant Ludington will receive no disciplinary action in this matter.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', is written over the printed name 'Lourdes Soto'. The signature is stylized with a large loop at the end.

Lourdes Soto
Inspector

Commanding Officer
Police Commissioner's Office